IN THE
SUPREME COURT OF PENNSYLVANIA

No. 406 MAL 2018

AMERICAN CIVIL LIBERTIES UNION OF PENNSYLVANIA,
Petitioner,

v.

PENNSYLVANIA STATE POLICE,
Respondent.

Petition for Allowance of Appeal from the May 18, 2018 Order of the Commonwealth Court, No. 1066 CD 2017

PETITION FOR ALLOWANCE OF APPEAL

Mary Catherine Roper, Pa. ID 71107
Andrew Christy, Pa. ID 322053
AMERICAN CIVIL LIBERTIES UNION OF PENNSYLVANIA
P.O. Box 60173
Philadelphia, PA 19102
(215) 592-1513 (telephone)
mroper@aclupa.org
achristy@aclupa.org
Counsel for Petitioner

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INTRODUCTION

Millions of Pennsylvanians use social media networks every day, an activity the United States Supreme Court has held to be protected by the First Amendment. See Packingham v. North Carolina, 137 S. Ct. 1730, 1735 (2017). Seven in ten Americans use at least one social media service and it is "clear" that "the Internet in general, and social media in particular," have become "the most important places . . . for the exchange of views." Id.

There is no more important time in which to have rigorous oversight of governmental surveillance activities than when law enforcement agents scrutinize citizens' protected First Amendment activities. That is why we have the Right -to - Know Law ("RTKL"): "to promote access to official government information in order to prohibit secrets, scrutinize the actions of public officials, and make public officials accountable for their actions." Bowling v. Office of Open Records, 990 A.2d 813, 824 (Pa. Cmwlth. 2010) (en banc), aff'd 75 A.3d 453 (Pa. 2013).

That principle is the animating force behind this Petition. The Pennsylvania State Police ("PSP") monitors public activity on social media sites as part of its investigation of past or prospective criminal activity. The ACLU requested a copy of the PSP's policy governing such activity, which the PSP produced, almost entirely redacted, because disclosing policies (or even definitions) would- according to PSP-threaten public safety.

The Office of Open Records ("OOR") reviewed the materials in camera and concluded that PSP had to produce the entire policy. But the Commonwealth Court reversed, holding that no further disclosure was required. In so holding, the Commonwealth Court construed the RTKL's public -safety exception to the RTKL broadly and construed the the OOR's and courts' ability to use in camera review in RTKL cases narrowly. Taken together, these rulings will have the pernicious effect of insulating PSP's social -media surveillance activities from public scrutiny-and of enabling other agencies to leverage the public -safety exception to insulate other privacy -impinging practices from public oversight. This Court's review is needed to ensure that the statutory balance is restored to the RTKL, and the principles of governmental transparency it embodies.

REFERENCES TO THE OPINIONS IN THE MATTER

The (currently1) unpublished panel opinion in the Commonwealth Court is found at No. 1066 C.D. 2017, 2018 WL 2272597 (May 18, 2018) (Hon. Cannon, J.). It is appended hereto at App. A. The unpublished opinion of the Office of Open Records is found at No. AP 2017-0593, 2017 WL 2953645 (July 7, 2017). It is appended hereto at App. B.

On June 11, 2018, PSP asked the Commonwealth Court to publish its decision in this case. A copy of PSP's motion is attached hereto at App. C.

ORDER IN QUESTION

On May 18, 2018, the Commonwealth Court issued an unreported opinion concluding with this paragraph and order:

> AND NOW, this 18th day of May, 2018 the Final Determination of the Pennsylvania Office of Open Records dated July 7, 2017 is REVERSED.

QUESTIONS PRESENTED

The Office of Open Records reviewed in camera the administrative policy the Pennsylvania State Police sought to withhold, but the Commonwealth Court reversed without looking at the documents the Office of Open Records reviewed.

1. Did the Commonwealth Court err in holding that the use of in camera review is inappropriate when the public -safety exemption is claimed and should be reserved for cases involving assertions of attorney- client privilege, the work -product protection, and the predecisional- deliberation exception? 2. Given the standard understanding of plenary review, did Commonwealth Court err when it reversed OOR findings of fact without reviewing all of the evidence that OOR reviewed to make those findings?

3. Did the Commonwealth Court err in finding that the Burig Affidavit, on its face, provided sufficient evidence of a threat to public safety to justify each

of the redactions to PSP's social media -monitoring policy-including the redaction of the "definitions" section and the provisions regarding social -media research on prospective employees?

CONCISE STATEMENT OF THE CASE

A. Proceedings Before the Agency

The ACLU submitted a RTKL request to PSP seeking "a copy, in digital format, of Pennsylvania State Police's complete, un-redacted AR 6-9 regulation, which establishes policies and procedures for PSP personnel when using social media monitoring software." R.2a. In response, PSP produced the nine -page AR 6-9, each page of which is heavily redacted: -WS IMME111M ='CR.C5 .,-27Z.I.g R.7a-15a. PSP claimed these redactions were justified by the public safety exception codified in 65 P.S. § 67.708(b)(2). R.3a. - 5 - B. Proceedings Before the OOR

The ACLU filed an administrative appeal with OOR and requested that the OOR conduct in camera review of the full, unredacted AR 6-9 "to determine whether the [PSP's] affidavit adequately explains a 'reasonably likely' basis for invoking the public safety exemption." R.21a. In response, PSP submitted the Burig Affidavit, which purported to explain the risk to PSP investigations that would result from releasing AR 6-9 in full. R.31a-33a. The ACLU also submitted

publicly available social media monitoring policies from the Philadelphia Police Department, the Salt Lake City Police Department, and the Orange County, California Intelligence Assessment Center. R.48a-72a.

After subsequent briefing, the OOR ordered that PSP submit AR 6-9 for in camera review. R.81a. PSP did not object to that review. R.75a. OOR concluded that despite Burig's "expertise in matters of law enforcement, the threats outlined by PSP's affidavit simply do not match the text of the policy." OOR Opinion at 9. According to the OOR, "the processes described throughout [AR 6-9] are strictly internal and administrative in nature," id. at 6; none of the redacted portions of AR 6-9 "could plausibly" be used by a third party to threaten PSP's investigations; and the affidavit failed to adequately explain otherwise, id. at 10. In addition to these general findings, OOR analyzed each redacted section and its corresponding discussion in the Burig Affidavit to demonstrate why PSP had not met its burden for the redactions in that section:

1. Section 9.02 Definitions

The Burig Affidavit stated that five of the twelve definitions listed under Section 9.02 of the policy had been redacted because they "provide insight into how PSP conducts its investigations" using social media monitoring software, and public disclosure would "provide insight into how PSP would conduct an investigation and what sources and methods it would use." R.33a. In its opinion,

the OOR explained that all of the redacted terms "are broad, and their definitions for each are extremely general," in line with the unredacted definition of "page" as the "specific portion of a real-time open -source site where content is displayed and managed by an individual or individuals with administrative rights"-in other words, a website. OOR Opinion at 6. That police, including PSP, monitor use of "highly -trafficked" social media websites by individuals they suspect of criminal behavior is well-known. Id.

2. Section 9.03 Utilization of Real -Time Open Sources as an Investigative Tool

The Burig Affidavit states that Section 9.03 is fully redacted because it describes how PSP uses social media monitoring during an investigation, including when it uses the software, when it is prohibited from using the software, and when it uses alternative methods. R.32a. According to Major Burig, such information would allegedly allow "nefarious" individuals to undermine PSP's investigations by knowing when social media is being monitored. Id. The OOR has explained that the text of the authorizations here is "broad," and the "narrow" prohibitions "are based upon known law." OOR Opinion at 6-7.

3. Section 9.04 Authorization to Access Real -Time Open Sources and/or Real -Time Open Source Networks

The Burig Affidavit states that Section 9.04 is fully redacted because it describes when a PSP employee must seek approval to monitor social media accounts and the process for seeking that approval, and he avers that disclosing such information would reveal to criminals that PSP uses a specific investigative method. R.32a. The OOR Opinion explains that PSP seems concerned with concealing an investigatory method that is already widely known, and the factors authorizing its use "apply to any possible situation PSP wishes to investigate." OOR Opinion at 7.

4. Section 9.05 Authorization Procedures for the Use of Online Aliases and Online Undercover Activity

The Burig Affidavit states that Section 9.05 is fully redacted because it concerns PSP's "ability to use" social media monitoring in an undercover capacity and "provides operational details" of such use. R.33a. Major Burig avers that disclosure would allegedly "jeopardize the ability of PSP" to conduct such investigations and catch criminals by exposing its "tactics." Id. The OOR explains -8 that the section almost entirely deals with "PSP internal procedures" that cannot be used by a third party-as distinct from operational details-and that the section includes a single prohibition on PSP activity that it described as "narrow." OOR Opinion at 7.

5. Section 9.06 Deconfliction; Section 9.07 Utilizing Real -Time Open -Source Monitoring Tools; Section 9.08 Source Reliability and Content; Section 9.09 Documentation and Retention

The Burig Affidavit provides a single explanation for the redaction of the four above -named sections, broadly stating that they address when investigations end, when to use social media monitoring, and how to verify investigative information. R.33a. According to the affidavit, release of this information would reveal "how PSP conducts its investigations." Id. The OOR describes these sections as addressing "internal administrative procedures" and generalized information about monitoring social media. OOR Opinion at 8-9.

6. Section 9.10 Utilization of Real -Time Open Sources for Employment Background Investigations

The Burig Affidavit states that Section 9.10 is fully redacted because disclosure would "jeopardize PSP's ability to hire qualified individuals" and "reveal what specific information may be reviewed" during the hiring process. R.33a. The OOR Opinion explains that this section "encompasses every kind of search and collection not prohibited by law" when hiring employees. OOR Opinion at 9. * * * OOR ultimately granted the ACLU of Pennsylvania's appeal and ordered PSP to produce an unredacted copy of AR 6-9. OOR Opinion at 10. C. Proceedings Before the Commonwealth Court

PSP appealed to the Commonwealth Court, which reversed the OOR's decision requiring disclosure of PSP's administrative policy. Commonwealth Court Opinion ("CC Op.") at 10-12. In so holding, the Commonwealth Court concluded that the OOR should not have looked beyond the affidavit, but should have accepted without question the PSP's description of what lay behind those black boxes. Id. at 12-13. The Commonwealth Court declined to review AR 6-9 in camera for itself, holding that when an agency submits a detailed affidavit invoking its experienced judgment about a potential threat, OOR and the courts should defer to that judgment. Id. at 12. The Commonwealth Court also indicated that in camera review generally is appropriate only in a narrow class of cases-i.e., those involving assertions of attorney -client privilege or predecisional deliberations-that did not include those arising under the RTKL's public -safety exception. Id. at 13.

CONCISE STATEMENT OF THE REASONS RELIED ON FOR ALLOWANCE OF APPEAL

The laws of this Commonwealth evince a deep and abiding commitment to the principles of transparency and accountability in all branches of government. - 10 - Pennsylvania's Sunshine Act requires legislative and executive agencies to deliberate and take action in open, public meetings rather than behind closed doors.

See 65 Pa. C.S. §§ 701-716. Judges are required to disclose potential conflicts of interest (campaign contribution, financial holdings, and the like). See Pa. Code of Judicial Conduct, Rule 2.7 cmt. 3; id. Rule 2.11 cmt. 5. And, for the past 10 years, Pennsylvania's Right -to -Know Law, 65 P.S. §§ 67.101-67.3104, has "promote[d] access to official government information in order to prohibit secrets, scrutinize the actions of public officials, and make public officials accountable for their actions." Bowling v. Office of Open Records, 990 A.2d 813, 824 (Pa. Cmwlth. 2010) (en bane), aff'd 75 A.3d 453 (Pa. 2013). Because of the importance of the transparency the Right-to -Know Law brings, exceptions from disclosure must be narrowly construed. Id.

These norms of public transparency are complemented by a parallel recognition that individuals are entitled to have and maintain a sphere of personal privacy that is not casually or wantonly invaded by governmental actors. See, e.g., Public Access Policy of the Unified Judicial System §§ 7.0, 8.0 (regulating treatment of confidential information). It is thus ironic that PSP is seeking to shield from scrutiny its own efforts to surveil the free expression of Pennsylvanians on social media networks. The Commonwealth Court's Opinion, if allowed to stand, would substantially erode the ability of Pennsylvanians to hold their Government accountable for its surveillance activities.

The Commonwealth Court's opinion also suffers from fundamental doctrinal problems. An appeal to the OOR or a court from the denial of a RTKL request is not a typical adversarial dispute, in which the reviewer serves as umpire between the two sides, each armed with relevant facts and applicable law. In a RTKL appeal, the requester has never seen the text of the document at issue and is at a severe disadvantage in its ability to argue that the exemption invoked by the agency does not apply.

The RTKL appeal process includes two key structural features to level this playing field. First, the RTKL makes agency records presumptively public and puts the burden on the agency to prove, by a preponderance of the evidence, that one or more of the RTKL's exemptions applies. 65 P.S. §§ 67.305, 67.708(a).

Second, the reviewing bodies (the OOR, the Commonwealth Court, and this Court) may themselves conduct an in camera review of the withheld or redacted document in order to evaluate the government's claimed exception. Bowling, 990 A.2d at 820; Office of Open Records v. Center Twp., 95 A.3d 354, 370 (Pa. Cmwlth. 2014).

The RTKL tasks the Office of Open Records with determining whether an agency has met its burden of proof. Center Twp., 95 A.3d 354, 358 (Pa. Cmwlth. - 12 - 2014), citing 65 P.S. § 67.1101(b)(1). The "'question of whether a record or document is exempt from disclosure is a factual one,' that should be made in the

first instance by an appeals officer." Id. at 369 (quoting Bowling, 75 A.3d at 476). But, under the Commonwealth Court's opinion in this case, if a police department claims that there is a threat to public safety and submits an affidavit with some level of detail to that effect, then that is the end of the inquiry, and OOR cannot make any factual finding and instead must defer to the agency affidavit. This Court should address these errors.

1. Review Is Warranted Under Pa.R.A.P. 1114(b)(1), Because the Commonwealth Court Opinion Conflicts with Prior Holdings of the Commonwealth Court: In Camera Review Is Not Inappropriate When Reviewing_ a Law Enforcement Affidavit Claiming a Threat to Public Safety.

In holding that in camera review cannot be used to test the adequacy of a law enforcement officer's claim that an otherwise -public record falls under the public -safety exception, the opinion below conflicts with the prior holdings of the Commonwealth Court in, inter alia, Harrisburg Area Community College v. Office of Open Records ("HACC"), No. 2110 C.D. 2009, 2011 WL 10858088, at *8 (Pa. Cmwlth. May 17, 2011) (en bane).

In reviewing an affidavit where the public safety exemption is claimed, the reviewing body must consider whether the affidavit:

(1) includes detailed information describing the nature of the records

sought; (2) connects the nature of the various records to the reasonable likelihood that disclosing them would threaten public safety in the - 13 - manner described; such tha[t] (3) disclosure would impair [the agency's] ability to perform its public safety functions . [in relation . . to what the agency claims to be] the alleged threatening consequence. Carey v. Pa. Dep't of Corrections, 61 A.3d 367, 376 (Pa. Cmwlth. Ct. 2013). "Generally, whether an agency establishes this exception depends on the level of detail in the supporting affidavit." Fennell v. Pa. Dep't of Corr. (Pa. Cmwlth., No. 1827 C.D. 2015, filed March 29, 2016), slip op. at 5 (citing Carey); see Carey, 61 A.3d at 375 (discussing Woods).

In camera review can be used at each step of this analysis. First, of course, it allows the reviewing body to determine whether the affiant has accurately or fairly described the "nature of the records sought." Here, the OOR found that the Burig Affidavit had not fairly described AR 6-9-that, rather than a document that set forth operational strategies or described the way the PSP's social media monitoring software works, the OOR found AR 6-9 described processes that "are strictly internal and administrative in nature." OOR Opinion at 6.

In camera review also allows the reviewing body to evaluate the second and third steps of the Carey test-i.e., whether the affiant has connected the "nature" of the record to the reasonable likelihood that disclosure would threaten public safety,

such that disclosure would impede the agency's public -safety mission. This does not require the reviewing body to substitute its own judgment for that of an experienced law enforcement officer-the question is not whether the affiant has - 14 - exaggerated the degree of danger that could result from the release of the record, but whether the affiant has adequately shown the nexus between the text of the document and the claimed threat.

In this case, for example, the OOR found that, given the administrative nature of AR 6-9, the Burig Affidavit did not adequately connect its contents to any risk of misuse. See id. at 9 ("[T]he threats outlined by PSP's affidavit simply do not match the text of the policy."); id. at 10 (concluding that the affidavit failed to adequately explain how the redacted portions of the administrative policy "could plausibly" be used by a third party to threaten PSP's investigations).

In fact, the Commonwealth Court has previously held that the OOR erred in not performing an in camera review when a law enforcement affidavit offered only vague or conclusory information about the record at issue. See HACC, 2011 WL 10958088, at *8. In concurrence in that case, Judge McCullough observed that under the circumstances she "would hold that OOR should have exercised its discretion to conduct a hearing or examine the records in camera. Clearly, in establishing the RTKL's 'public safety' exemption, the legislature recognized the significance of these types of concerns." Id. at *9.2 Importantly, the court did not

Even dissenting Judge Pellegrini did not disagree; his dissent was premised not on a quarrel over whether in camera review was an appropriate tool, but rather on his belief that it was unnecessary on the facts presented. Id. at *10 (Pellegrini, J., dissenting) ("[I]n no way can disclosure of course material related to DUI training possibly be a public safety hazard if released."). - 15 - suggest that it was beyond the OOR's purview to test the logic of the connection between the record and the threat posited by the agency.

It is impossible to reconcile (1) HACC's holding as to the importance of reviewing the documents themselves when the public safety exception is asserted, with (2) the Commonwealth Court's assertion in this case that in camera review is unavailable when the agency expresses a concern based on its expertise and experience. Indeed, the current decision turns HACC on its head by holding that unless a law enforcement affidavit is vague and conclusory on its face, the reviewing body must adopt the affidavit's representations as the reviewing body's own findings of fact.

In short, in camera review is a key component of the OOR's authority to rule on "all 'procedural matters on the basis of justice, fairness, and the expeditious disposition of the dispute" and is a "first-cousin of the appeals officer's express power to conduct a fact-finding hearing." Center Twp., 95 A.3d at 370. And, historically, in camera review has been used whenever premature or unwarranted

public disclosure could be prejudicial. See, e.g., Octave ex rel. Octave v. Walker, 103 A.3d 1255, 1263 (Pa. 2014) (approving use of in camera review for certain mental health records sought in discovery). None of this, of course, means that OOR must conduct an in camera review in every case-only that it is a tool that is - 16 - available to test any affidavit, and the OOR should not be discouraged from employing it. Here, however, the Commonwealth Court has barred the OOR from using in camera to test the accuracy of affidavits based on agency expertise, suggesting that such review is limited to cases involving the attorney -client privilege or the protections afforded predecisional deliberations. CC Op. at 13. In such cases, the court insisted, "the actual words on the page are key to the determination, whereas here . . . the actual words on the page are not at issue;" instead, "it is the effect of the disclosure that is key." Id. Neither the RTKL, nor the decisions of this Court, nor principles of common sense support such a presumptive limitation on the availability of in camera review. Indeed, without the factual context provided by the document itself, the OOR and the courts will be forced to simply defer to any passably well -written assertion of danger by the underlying agency-an outcome that is inconsistent with the burden of proof placed on agencies by Section 708(a) of the RTKL. Limiting in camera review to the narrow class of cases referenced in the Commonwealth Court's opinion would greatly increase agencies' ability to withhold records from public scrutiny. This

Court should grant allowance of appeal to clarify that in camera review is not limited to poorly written affidavits or assertions of privilege. - 17 -

2. Review Is Warranted Under Pa.R.A.P. 1114(b)(3) Because This Case Presents an Issue of First Impression Under the Right -to - Know Law: Given the Common Understanding of Plenary Review, Could the Commonwealth Court Reverse OOR Findings of Fact Without Reviewing All of the Evidence That OOR Reviewed?

Bowling was this Court's initial foray into the scope and standard of review under the then-nascent Right -to -Know Law. As the Court recognized, the two inform each other. 75 A.3d at 475. The record that is to be presented-and as to which the Commonwealth Court is to conduct "plenary" or "broad" review, even supplementing it if need be-is to contain "any relevant evidence or matter brought before the appeals officer." Id. at 476 (emphasis added).

The position of the Commonwealth Court, however, appears to be that the Office of Open Records is to provide facts, and that they may be reviewed-or not, as the Commonwealth Court chooses. That position may not be entirely foreclosed by this Court's holding on scope of review in Bowling, but at the least Bowling creates a deep tension with that position-a tension that requires this Court's review and resolution.

More broadly, "plenary" and "de novo" are widely used terms, and there should be a single understanding as to their meaning Although there are plenty of cases that simply say that a court may review an entire record on plenary review, there are none that go on to say that a court may pick and choose which parts of the record to review if the evidence presented to it is conflicting. Indeed, the more detailed descriptions suggest the contrary. See, e.g., Summers v. Certainteed - 18 - Corp., 997 A.2d 1152, 1159 (Pa. 2010) ("To the extent that this Court must resolve a question of law, we shall review the grant of summary judgment in the context of the entire record." (emphasis added)); Big Bass Lake Community Ass'n v. Warren, 23 A.3d 619, 625 & n.5 (Pa. Cmwlth. 2011) (holding, on plenary and de novo review of a permanent injunction, that "[t]his Court is bound by the trial court's findings of fact unless those findings are not based on competent evidence in the record"); Buffalo Twp. v. Jones, 813 A.2d 659, 664 nn.4, 7 (Pa. 2002) (standard of review for permanent injunction is de novo and plenary but "in reviewing fact-laden decisions, an appellate court displays a high level of deference to the trial court as the fact finder").

As this Court said in Bowling, the Commonwealth Court is not limited to the record made before the Office of Open Records. It can always develop a fuller record. But this Court should grant the petition for allowance of appeal to say, at the least, that as a reviewing court conducting de novo and plenary review, the

Commonwealth Court should have the obligation, in addition to the right, to review questions in the context of the entire record that was before the Office of Open Records before it rejects the conclusions that the Office of Open Records reached based upon its review of that record. - 19 -

3. Review Is Warranted Under Pa.R.A.P. 1114(b)(4) Because These Questions Are of Such Substantial Public Importance as to Require Prompt and Definitive Resolution by the Pennsylvania Supreme Court: The Commonwealth Court's Opinion Relieves Agencies of Their Burden of Proof Regarding the Application of a RTKL Exemption.

Here, the Commonwealth Court not only held that it did not need to review this affidavit based on the facts of this case and the type and extent of redactions in this document, but also purported to set forth general principles governing the circumstances in which in camera review should be conducted.

First, the Commonwealth Court concluded that it could decide-based on the face of the affidavit alone-whether the affidavit "adequately described the nature of the redacted information." CC Op. at 12. That conclusion is both wrong and dangerous. It is wrong because, as a matter of simple logic, one cannot decide whether a description of a document faithfully reflects the contents of that document without reviewing both the description and the document. And it is dangerous because it incents careless (or, in some cases perhaps, overly careful)

drafting by agency representatives if they know that those representations are all but certain not to be checked by the OOR or the courts.

Indeed, the Commonwealth Court's pronouncement in this regard is all the more surprising because it is diametrically opposed to the assessment of the OOR. That body, which was the only appellate body to date to have reviewed the entire record in making its determination concluded in no uncertain terms that "the threats outlined in PSP's affidavit simply do not match the text of the policy," - 20 - OOR Opinion at 9, and that "there is no material in [the policy] that is reasonably likely to jeopardize public safety," id. at 5. The OOR reached that conclusion because "the authorizations and prohibitions in each section [of the policy] are generalized, permitting PSP to use various open-source tools whenever it suspects criminal activity," and, "[w]here the policy does touch upon interaction with outside parties, it merely prohibits PSP Troopers from breaking applicable laws." Id. at 5-6. If there is one theme that runs throughout the OOR's decision, it is that the representations in the Burig affidavit did not reflect the substance of the policy.'

And lest there be any dispute about the likely impact of this opinion, PSP has removed it by applying to have the Commonwealth Court's opinion published. See App. C. That application makes plain that PSP views this decision as a significant development in RTKL jurisprudence, both because it "provid[es]

substantive guidance regarding what an affidavit must contain to be sufficient to support exemption under the public safety exception" and because it "clarifies that when an affidavit is legally sufficient to sustain an agency's burden, it is not necessary for the OOR or a court to conduct an in camera review of the record(s)

A fully informed reviewing court, armed with a firsthand assessment of both the affidavit and the underlying policy, might ultimately agree with the Office of Open Records' conclusion in this regard-or it might not. That is not the question at this stage of the proceedings. Instead, the salient point for present purposes is that the Office of Open Records' conclusion is not one that can be refuted based on the affidavit alone. -21 - at issue." App. C at 1-2; see id. at 2 ("[T]he Court made an important statement of the law regarding the public safety exception. The Court recognized that when analyzing whether a record is exempt from disclosure under the public safety exception, "the actual words on the page are not at issue; rather, the issue is whether disclosure of those words would be reasonably likely to threaten public safety or a public protection activity.").

Said otherwise, PSP hopes to use the Commonwealth Court's opinion to further insulate its records from public scrutiny.4 Given the conclusory, bare - bones nature of the affidavit at issue in this case, allowing the decision below to stand- even as an unpublished memorandum but even more so if PSP's application

to publish is granted-will substantially erode the public's ability to watch over some of the most powerful and impactful agencies in the Commonwealth.'

This Court's review is needed in order to restore the role of in camera review to its proper place in the RTKL regime: as a check on agencies' nondisclosure and redaction decisions and a tool that, if used, becomes a part of the

What is more, the same rationale could very well be invoked by other agencies that could even plausibly claim application of one of the RTKL's likelihood -of-harm exemptions. See 65 P.S. § 67.708(b)(1)-(4). As such, the impact of the Commonwealth Court's opinion will extend far beyond this case and these parties.

In addition, if published, the Commonwealth Court's limitation of the circumstances in which in camera is available would become binding on the OOR- a result that would have far- reaching implications for all manner of RTKL cases. - 22 - record on appeal and cannot be disregarded without review.6 Accordingly, this Court should grant the petition for allowance of appeal.

The Commonwealth Court's opinion states that ACLU conceded that in camera review was not required here. That is half right. The ACLU explained that in camera review is not necessary because, on its face, the Burig affidavit lacks the detail necessary to justify the public safety exemption. But once the court determined that the affidavit was facially sufficient, the court needed to perform its

own in camera review because of the substantial questions raised by the ACLU- and OOR-about whether "the threats outlined in PSP's affidavit . .match the text of the policy." OOR Opinion at 9. - 23 -

CONCLUSION

For the foregoing reasons, the Court should grant the ACLU's petition for allowance of appeal.

Respectfully submitted,

this June 18, 2018.

/s/ MaryCatherine Roper
MaryCatherine Roper
Counsel for Petitioner

CERTIFICATE OF COMPLIANCE

I hereby certify that this petition complies with Pa.R.A.P. 124, 127 and 1115 of the Pennsylvania Rules of Appellate Procedure.

It contains 5093 words, excluding the cover page, table of contents, table of authorities, signature blocks, and this certificate (Pa.R.A.P. 1115(f)-(g)).

I certify that this filing complies with the provisions of the Case Records Public Access Policy of the Unified Judicial System of Pennsylvania that require filing confidential information and documents differently than non-confidential information and documents.

CERTIFICATE OF FILING AND SERVICE

I hereby certify that on the 18th day of June, 2018 I electronically filed the foregoing with the Prothonotary of the Supreme Court of Pennsylvania, and that on the 18th day of June, 2018 I served true and correct copies of it on the following counsel of record:

D. Alicia Hickok, Pa. ID 87604
Mark D. Taticchi, Pa. ID 323436
DRINKER BIDDLE & REATH LLP
One Logan Square, Suite 2000
Philadelphia, PA 19103-6996
alicia.hickok@dbr.com
mark.taticchi@dbr.com
Counsel for Respondent